

Senate Joint Resolution No. 2

RESOLUTION CHAPTER 141

Senate Joint Resolution No. 2—Relative to classified workers.

[Filed with Secretary of State July 10, 2025.]

LEGISLATIVE COUNSEL’S DIGEST

SJR 2, Cortese. Classified workers’ rights.

This measure would urge President Donald J. Trump and the Congress of the United States to approve federal legislation guaranteeing specified rights to classified workers that would, among other things, empower those workers to work in a stable, safe environment and receive livable and competitive wages, as provided.

WHEREAS, Classified workers include paraeducators, instructional assistants, those who work in clerical and administrative services, transportation services, food and nutrition services, custodial and maintenance services, health and pupil services, technical services, and skilled trades throughout elementary schools, secondary schools, and public institutions of higher education; and

WHEREAS, The more than 3,000,000 classified workers nationwide are the frontline workers who transform schools in the United States from brick and mortar buildings into places of learning and support for more than 49,000,000 pupils across the United States; and

WHEREAS, Since the onset of the COVID-19 pandemic, national school staff employment has fallen, and schools employ 331,000 fewer classified workers than before, leaving schools without the necessary staff in almost every position; and

WHEREAS, A crisis in the staffing of teachers has resulted in some classified workers being expected to assume the duties of certificated teachers without commensurate compensation or benefits; and

WHEREAS, Many classified workers are severely undercompensated for their work and do not receive anything close to a living wage, much less a competitive wage compared to the existing labor market that is a family-sustaining living wage; and

WHEREAS, Unlike most school employees, many classified workers are not full-time employees because their services have been limited to reduced hours, including bus drivers and food service workers; and

WHEREAS, Many classified workers lack access to high-quality, affordable health care after being intentionally hired for too few hours to receive health and retirement benefits, or they otherwise are charged exorbitant employee premiums for health insurance; and

WHEREAS, Classified workers are often the most diverse subset of school employees, are more likely to have grown up in the communities they serve, and are trusted school community members for many pupils and parents, and, yet, the voices of classified workers are not always valued in forming school policies; and

WHEREAS, Classified workers often serve pupils facing systemic barriers, but they are often excluded from professional growth and development opportunities; and

WHEREAS, Similar to many school employees, classified workers are too frequently subject to workplace violence and other safety hazards, including contaminants and extreme temperatures; and

WHEREAS, Classified workers deserve real solutions that would empower them to work in a stable, safe environment, have multiyear job security, receive livable and competitive wages, access to sufficient hours, and fair compensation for their work, and have a voice on the job and meaningful input in school policy; and

WHEREAS, Respecting classified workers remains essential to creating and maintaining safe and supportive school environments that are conducive to pupils learning and thriving; and

WHEREAS, It is important to recognize the rights, respect, and dignity that classified workers deserve as they continue to care for and educate the next generation; now, therefore, be it

Resolved by the Senate and the Assembly of the State of California, jointly, That classified workers should be compensated at a rate that is a livable, competitive wage, and they should have access to high-quality, affordable health care and health care benefits at a de minimus personal cost; and be it further

Resolved, That classified workers should be entitled to 16 weeks of paid family and medical leave; and be it further

Resolved, That classified workers should have paid leave for all planned and unforeseen school closures, including weather-related closures, professional development days, and other short-term closures; and be it further

Resolved, That classified workers should have access to meaningful and free or affordable professional growth and development opportunities during regular, paid working hours that provide a path to career advancement; and be it further

Resolved, That classified workers should be given sufficient resources and supplies to enable them to do their jobs effectively and efficiently, including up-to-date technology; and be it further

Resolved, That classified workers should have access to training and appropriate personal protective equipment; and be it further

Resolved, That classified workers should have representation in organizations that determine policies that may affect the working conditions of classified workers; and be it further

Resolved, That classified workers should receive notification and the opportunity to provide significant input about the implementation of

electronic monitoring, data, algorithms, and artificial intelligence technology in their workplaces and should receive high-quality, professional training as new technologies are introduced; and be it further

Resolved, That classified workers should have adequate notice and opportunity to participate, when appropriate, in individualized education program meetings, behavior intervention team meetings, and other similar meetings relating to the pupils the classified workers support, to the extent permitted by law; and be it further

Resolved, That classified workers should experience a safe and healthy working environment, free from recognized hazards that cause, or are likely to cause, death or serious physical harm; and be it further

Resolved, That classified workers should experience appropriate staffing levels to ensure that pupils have adequate support and that classified workers can complete their jobs effectively, efficiently, and safely; and be it further

Resolved, That classified workers should receive adequate notification regarding the duration of their employment; and be it further

Resolved, That classified workers should have employment contracts that include a provision for automatic renewal of the contract at the expiration of the contract, rather than the automatic termination of the contract at expiration, and a provision for termination of employment for just cause, rather than termination of employment at will; and be it further

Resolved, That classified workers should have a process for reporting workplace issues and concerns to their employer in a manner that protects classified workers, and other employees, from retaliation; and be it further

Resolved, That in recognition of the importance of collective bargaining in maintaining good working conditions, employers of classified workers should engage in good faith negotiations, strive to reach timely and just contracts that fairly compensate and protect classified workers, prevent scabs from replacing classified workers engaged in a strike, and refrain from locking out classified workers; and be it further

Resolved, That the Legislature urges President Donald J. Trump and the Congress of the United States to approve federal legislation guaranteeing these rights to classified workers; and be it further

Resolved, That the Secretary of the Senate transmit copies of this resolution to the President and Vice President of the United States, to the Speaker of the United States House of Representatives, to the Majority Leader of the United States Senate, to each Senator and Representative from California in the Congress of the United States, to the Governor, to the Attorney General, and to the author for appropriate distribution.